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Case Name: *First Technology Federal Credit Union v. Thien Nguyen, et al.*

Case No.: 26CV484135

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff First Technology Federal Credit Union (“Plaintiff”) moves that the truth of all matters specified in the Requests for Admissions, Set One, be deemed admitted by Defendant Thien Nguyen (“Defendant”) under Code of Civil Procedure Sections 2023.010 *et seq.* and 2031.010 *et seq.* Notice of Motion (the “Motion”) at 1:25-2:2 (filed: May 26, 2026). Plaintiff also moves for a monetary sanction against Defendant in the amount of \$1,792.50 to compensate Plaintiff for its attorneys’ fees and costs for this Motion. *Id.* at 2:2-4.

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admission, Set One, on Defendant on March 17, 2026. Declaration of attorney Melody G. Anderson In Support of Motion (“Anderson Decl.”) at ¶ 2.

Defendant never responded to the Requests for Admission, Set One, Anderson Decl. at ¶¶ 3-6, in spite of Defendant’s obligation to respond to them under Code of Civil Procedure section 2033.240.

Under Code of Civil Procedure section 2033.280, because Defendant failed to respond to the Requests for Admission, Set One, Plaintiff moves for an Order deeming admitted by Defendant the truth of each matter in the Requests for Admission, Set One. C.C.P. 2033.280(b).

The Motion is well supported by the law, well supported by the facts set forth in the Anderson Declaration, and reasonable in all respects.

Defendant does not argue otherwise. Indeed, Defendant has not opposed this Motion at all, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).).

Regarding the monetary sanction sought by Plaintiff here, the Court has authority and discretion under Code of Civil Procedure Section 2023.030(a) to impose a reasonable sanction against Defendant: “The court may impose a monetary sanction ordering that

one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added). And Defendant's failure to respond to the Requests for Admission, Set One, was a misuse of the discovery process. C.C.P. § 2023.010(d)

Hence, while the Court here may award Plaintiff a monetary sanction paid by Defendant for Plaintiff's reasonable attorney's fees and costs incurred for this Motion, the *amount* of this sanction is within the wide discretion of the Court. Simply put, the Court gets to determine what amount is *reasonable* under these circumstances.

Here, for attorneys' fees, Plaintiff seeks \$1,732.50 for 3.5 hours of attorney work for this Motion at a billable rate of \$495.00 per hour. Anderson Decl. at ¶ 7. And for costs for this Motion, Plaintiff the \$60.00 filing fee. *Id.*

In light of prevailing rates in the relevant market, the Court rules that this billable rate sought of \$495.00 per hour is reasonable. *But* the number of 3.5 hours requested for this simple, straightforward Motion is unreasonable

This Motion is a layup. All Plaintiff had to do to win it is point out that Plaintiff served the Requests for Admission on Defendant (it did), California law required Defendant to respond (it does), and Defendant never responded (never did). That reasonably should have taken able counsel for Plaintiff *one* hour total. And there is no need for Plaintiff's counsel to spend a second on reply papers or oral argument because this Motion is unopposed.

Regarding the cost of \$60.00 for the filing fee for this Motion, the Court finds that to be a reasonable cost incurred by Plaintiff for this Motion.

Hence, the Court awards Plaintiff from Defendant a monetary sanction of **\$555.00** total for Plaintiff's reasonable attorneys' fees of \$495.00 (= 1.0 hour at \$ 495.00 per hour) and Plaintiff's reasonable costs of the \$60.00 filing fee for this Motion.

Conclusion and Order

Accordingly, the Court **GRANTS** Plaintiff's Motion in all respects. Specifically, the Court **ORDERS** that:

1. The truth of all specified facts in the Requests for Admission, Set One, served on Defendant Thien Nguyen on March 17, 202, is deemed admitted by Defendant Thien Nguyen; and
2. Within 30 days from today, Defendant Thien Nguyen will pay Plaintiff First Technology Federal Credit Union a monetary sanction of \$555.00 total for Plaintiff's reasonable attorneys' fees and costs for this Motion.

Moreover, Defendant Thien Nguyen is put on **NOTICE** that if Defendant Thien

Nguyen fails to comply with this Order within 30 days from today then Defendant Thien Nguyen Plaintiff will be subject to further escalating monetary and non-monetary sanctions including, but not limited to, issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: June 17, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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